

§ 760. Duties of counsel. 1. If the court has entered a dispositional order pursuant to section seven hundred fifty-four, it shall be the duty of the respondent's counsel to promptly advise such respondent and if his or her parent or other person responsible for his or her care is not the petitioner, such parent or other person responsible for his or her care, in writing of the right to appeal to the appropriate appellate division of the supreme court, the time limitations involved, the manner of instituting an appeal and obtaining a transcript of the testimony and the right to apply for leave to appeal as a poor person if he or she is unable to pay the cost of an appeal. It shall be the further duty of such counsel to explain to the respondent and if his or her parent or other person responsible for his or her care is not the petitioner, such parent or person responsible for his or her care, the procedures for instituting an appeal, the possible reasons upon which an appeal may be based and the nature and possible consequences of the appellate process.

2. It shall also be the duty of such counsel to ascertain whether the respondent wishes to appeal and, if so, to serve and file the necessary notice of appeal.

3. If the respondent has been permitted to waive the appointment of counsel pursuant to section two hundred forty-nine-a, it shall be the duty of the court to provide the notice and explanation pursuant to subdivision one and, if the respondent indicates that he or she wishes to appeal, the clerk of the court shall file and serve the notice of appeal.